



Homeschooling in North Carolina

A Legal Rights & Resources Guide
for Diverse Families

For Black, Brown, LGBTQ+, and special-needs
homeschool & hybrid-learning families

A SEAT Squad Digital Download · Updated June 2026

Important: This Is Not Legal Advice

This guide is for informational purposes only. It is not legal advice and does not create an attorney-client relationship. Laws change frequently.

Always verify against primary sources before making decisions about your family's education. If your situation involves custody, special needs disputes, or legal concerns, consult a North Carolina-licensed education or family law attorney.

This guide reflects laws and programs as of **June 2026**.

How to Use This Guide

This guide walks you through everything a diverse homeschooling family needs to know to legally homeschool in North Carolina, access available scholarship funds, navigate special needs services, and understand the legal landscape for LGBTQ+ families.

What's Inside

1. **Your Homeschooling Option** — North Carolina's home school law
2. **Home School Requirements** — Notice, testing, records, qualifications
3. **Scholarships & Funding** — NC ESA, Opportunity Scholarship, Disabilities Grant
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5. **LGBTQ+ Family Considerations** — What NC's laws mean for your family
6. **Inclusive Resources** — Co-ops, organizations, support networks
7. **Templates & Checklists** — Notice checklist, test tracker, records log

SECTION 1

Your Homeschooling Option in North Carolina

North Carolina has **one legal option** for homeschooling: the **home school**, regulated by the **Division of Non-Public Education (DNPE)**. Unlike Florida or Tennessee, there is no private school umbrella option for homeschoolers in NC.

NC Home School at a Glance

Requirement	North Carolina
Legal basis	N.C. Gen. Stat. § 115C-563 et seq.
Compulsory attendance ages	7–16
Notification	Yes — Notice of Intent to DNPE
Parent qualification	High school diploma or GED required
Required subjects	No — but annual standardized test required
Testing	Yes — nationally standardized test annually
Record keeping	Attendance, immunization, and test records
Immunization	Required (records must be maintained)
Operating schedule	At least 9 months per year, regular schedule

NC requires annual testing. Unlike many states, North Carolina requires that you administer a nationally standardized achievement test *every year* and retain the results. This is one of NC's stricter requirements — plan for it.

SECTION 2

Home School Requirements

Step 1: File Your Notice of Intent

You must file a **Notice of Intent to Operate a Home School** with the **Division of Non-Public Education (DNPE)**. This is filed once when you start your home school.

The notice must include:

- Name of the school (you choose the name)
- Address where the school operates
- Name of chief administrator (parent/guardian)
- Type of school (religious or independent)

File online through the DNPE portal at ncadmin.nc.gov/dnpe

Step 2: Meet Parent Qualifications

The chief administrator (parent or guardian providing instruction) must hold a **high school diploma or equivalent (GED)**. No teaching certificate or college degree is required.

Step 3: Operate on a Regular Schedule

Your home school must operate on a **regular schedule** for at least **9 months** of the calendar year. The schedule is up to you — it can be traditional (August-May), year-round, or any custom schedule. You must maintain attendance records.

Step 4: Administer Annual Standardized Testing

Every year, you must administer a **nationally standardized achievement test** to each enrolled student. The test must measure achievement in English/reading, spelling, and math. Approved tests include:

- Iowa Test of Basic Skills (ITBS)
- Stanford Achievement Test (SAT-10)
- California Achievement Test (CAT)
- Woodcock-Johnson Tests of Achievement
- Comprehensive Test of Basic Skills (CTBS)
- Brigance Comprehensive Inventory
- Metropolitan Achievement Test (MAT)
- Peabody Achievement Test (administered by certified teacher)

You must retain the test results in your records but do **not** submit them to DNPE. DNPE may request to see them during compliance checks.

Step 5: Maintain Records

You must maintain:

- **Attendance records** — daily or weekly log
- **Immunization records** — or a signed religious exemption statement
- **Annual test results** — retained in your files

Records must be available for inspection by DNPE upon request. Keep them for at least one year after the student's last day of attendance.

What Your Homeschooled Student CAN Access

NC home school students have the right to:

- **Participate in extracurricular activities** at their local public school (if the principal allows it — NC law permits but does not require schools to allow

homeschool participation)

- **Dual enrollment** at community colleges through the Career and College Promise (CCP) program
- **NC Promise Tuition** at participating UNC institutions
- **Driver's license** — NC requires a Driving Eligibility Certificate, which homeschooled students can obtain through DNPE

SECTION 3

Scholarships & Funding Programs

North Carolina has several school choice funding programs. Unlike Florida's universal PEP, NC's programs have specific eligibility requirements — primarily income-based or disability-based.

1. NC Education Savings Account (ESA)

What it is: ESA for students with disabilities.

Who qualifies: Students with disabilities who meet eligibility criteria. The student must have been enrolled in a NC public school for the prior school year, or be entering kindergarten. Income requirements may apply (verify with NCSEAA).

Funding: Approximately \$9,000 per student per year.

What it covers: Private school tuition, tutoring, curriculum, educational therapies, assistive technology, and other approved educational expenses.

Administered by: NC State Education Assistance Authority (NCSEAA) — ncseaa.edu

2. Opportunity Scholarship

What it is: Voucher for private school tuition.

Who qualifies: Income-based eligibility. Originally limited to families at or below 200% of federal poverty level, but NC has been expanding this program. Verify current income thresholds with NCSEAA.

Funding: Approximately \$3,000–\$7,000 per year depending on income level.

What it covers: Private school tuition and fees at participating private schools.

3. Disabilities Grant

What it is: Grant for students with disabilities for private school or educational services.

Who qualifies: Students with disabilities. May not require prior public school enrollment (verify with NCSEAA).

Funding: Up to approximately \$8,000 per year.

WHICH PROGRAM IS BEST FOR YOUR FAMILY?

- **If your child has a disability:** The NC ESA or Disabilities Grant is likely the best option — higher funding and more flexible use of funds.
- **If your child does not have a disability:** The Opportunity Scholarship may provide private school tuition assistance if you meet income requirements.
- **If you want to homeschool with state funds:** The NC ESA allows funds for curriculum, tutoring, and educational materials — similar to Florida's PEP. The Opportunity Scholarship is for private school tuition only.

SECTION 4

Special Needs Provisions

IEP Rights for NC Homeschoolers

If your child has an IEP from a NC public school:

- **The IEP document remains valid** as a record of your child's needs
- **Keeping the IEP current matters** for NC ESA and Disabilities Grant eligibility
- **Child Find** — your school district is still required to identify and evaluate children who may need special education services, even homeschooled children
- **You are not required to follow the IEP** at home, but it's a useful guide

Services Available to Homeschooled Students with Disabilities

- **Evaluation services** through your local school district (Child Find)
- **NC ESA funds** for therapies, tutoring, curriculum, assistive technology
- **Exceptional Children's Division** of the NC Department of Public Instruction — guidance on services
- **ECAC (Exceptional Children's Assistance Center)** — NC's parent training and information center for families of children with disabilities

PRACTICAL ADVICE FOR SPECIAL-NEEDS FAMILIES

- **Get the IEP before withdrawing** if at all possible — you'll need it for ESA eligibility
- **NC ESA is one of the better programs** for special needs homeschooling — it provides flexible ESA funds (unlike Georgia's GSNS which pays the school directly)
- **Keep all documentation** — IEPs, evaluations, therapy notes, progress data

- **For the annual testing requirement**, some tests (like Brigance or Woodcock-Johnson) can be administered with accommodations for special needs learners

SECTION 5

LGBTQ+ Family Considerations

North Carolina's legal landscape for LGBTQ+ families is **moderate** — better than Florida and Tennessee, but without the statewide protections found in some other states. The infamous HB2 "bathroom bill" was repealed in 2017, and there is no "Don't Say Gay" equivalent curriculum restriction.

No "Don't Say Gay" Equivalent

NC does **not** restrict classroom instruction on sexual orientation or gender identity. As a homeschooler, you are completely free to include LGBTQ+ history, diverse family structures, and affirming content in your curriculum.

HB2 / Bathroom Bill — Repealed

North Carolina's HB2 (2016) required people to use restrooms matching the sex on their birth certificate in government buildings. It was **repealed in 2017** and replaced with HB142, which left bathroom regulation to the state legislature (not local governments) but did not re-enact the restriction. HB142 expired in 2020. There is currently no active bathroom bill in NC.

Anti-Discrimination Protections

NC provides **no statewide protections** against discrimination based on sexual orientation or gender identity (beyond federal Bostock protections for employment). However, several cities and counties have local ordinances:

- Charlotte, Durham, Chapel Hill, Raleigh, Carrboro, Hillsborough, Orange County, and others have passed local anti-discrimination ordinances
- Wake County passed protections in 2021

Transgender Healthcare

NC has **not** passed a ban on gender-affirming healthcare for minors (as of June 2026). Unlike Florida, Georgia, Tennessee, and Arizona, transgender youth in NC can still access gender-affirming medical care. However, the conservative legislature has considered such bills, so this could change.

Conversion Therapy

Conversion therapy is **banned** in several NC cities including Charlotte, Durham, Chapel Hill, Raleigh, Carrboro, and others. There is no statewide ban.

Adoption and Parental Rights

- **Adoption:** Same-sex couples can adopt in NC
- **Same-sex marriage:** Legal since 2015 (Obergefell)
- **Second-parent adoption:** Available in NC, though the process can vary by county

Protective Steps for LGBTQ+ Families

- **Legal documents:** Establish both parents' legal rights through second-parent adoption where available. Consult a NC family law attorney.
- **Know your city's protections:** Charlotte, Durham, Raleigh, Chapel Hill, and others have local anti-discrimination ordinances. If you live in these cities, you have additional protections.
- **Healthcare access:** NC has not banned gender-affirming care for minors — this is an advantage over FL, GA, TN, and AZ. Take advantage of this while it's available.
- **Curriculum freedom:** No restrictions on what you teach at home. Include affirming content freely.

- **Watch the legislature:** NC's General Assembly has considered various LGBTQ+ restriction bills. Stay informed through Equality NC.

SECTION 6

Inclusive Resources in North Carolina

Verify all contact information before relying on these resources.

Scholarship & Legal Resources

Resource	What they do	Contact
NC Division of Non-Public Education (DNPE)	Registers and oversees home schools. File your Notice of Intent here.	ncadmin.nc.gov/dnpe
NC State Education Assistance Authority (NCSEAA)	Administers ESA, Opportunity Scholarship, and Disabilities Grant	ncseaa.edu
NC Dept of Public Instruction — Exceptional Children Division	Special education guidance and services	dpi.nc.gov
HSLDA	Legal support (note: conservative Christian orientation)	hslda.org
CRHE	Inclusive, secular homeschool law info	responsiblehomeschooling.org

LGBTQ+ Family Resources

Resource	What they do	Contact
Equality NC	Statewide LGBTQ+ advocacy organization	equalitync.org

PFLAG NC chapters	Family support. Chapters in Charlotte, Raleigh, Durham, Chapel Hill, Winston-Salem.	pflag.org
Charlotte LGBTQ+ Center	Community center and resources in Charlotte	Search for current contact
LGBT Center of Raleigh	Community center, programs, support	lgbtcenterofraleigh.com
Campus Pride	National HQ in Charlotte. LGBTQ+ youth advocacy.	campuspride.org

Cultural & Community Resources

Resource	What they do	Contact
NBHE	National Black Home Educators — active NC presence	nbhe.net
NC Black homeschool groups	Facebook groups in Charlotte, Raleigh, Durham, Greensboro	Search Facebook
NC Secular homeschool groups	Multiple inclusive/secular co-ops in Triangle, Charlotte, Triad	Search Facebook
Hispanic homeschool groups	Growing in Charlotte and Raleigh areas	Search Facebook

Special Needs Resources

Resource	What they do	Contact
ECAC (Exceptional Children's Assistance Center)	NC's parent training and information center for families of children with disabilities	ecac-parentcenter.org
Disability Rights NC	Legal advocacy for people with disabilities	disabilityrightsn.org

First in Families of NC	Support for individuals with developmental disabilities	firstinfamilies.org
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General Support

Resource	What they do	Contact
NC Community Colleges — Career & College Promise	Dual enrollment for homeschoolers at community colleges	Search your local CC
4-H NC	Youth programs open to homeschoolers	nc4h.org

Finding inclusive co-ops: NC has a large and active homeschooling community, especially in the Triangle (Raleigh-Durham-Chapel Hill), Charlotte, and Greensboro. Search for "secular homeschool NC" or "inclusive homeschool [your city]" on Facebook. The Triangle area is known for inclusive co-ops.

SECTION 7

Templates & Checklists

Notice of Intent Checklist

- ☐ Go to DNPE portal at ncadmin.nc.gov/dnpe
- ☐ Complete the online Notice of Intent form
- ☐ Choose your school name
- ☐ Designate chief administrator (parent with HS diploma/GED)
- ☐ Classify as religious or independent home school
- ☐ Submit — DNPE will process and confirm
- ☐ Save your confirmation

Annual Testing Tracker

Year	Test used	Date administered	Results retained?
Year 1			☐
Year 2			☐
Year 3			☐
Year 4			☐

Records Checklist

- ☐ Attendance log (9 months minimum, regular schedule)
- ☐ Immunization records (or signed religious exemption)
- ☐ Annual standardized test results
- ☐ Proof of parent's high school diploma or GED

☐ DNPE Notice of Intent confirmation

Scholarship Application Tracker

Program	Eligible?	Applied?	Status	Award
NC ESA	☐	☐		
Opportunity Scholarship	☐	☐		
Disabilities Grant	☐	☐		

FOR THE SELLER

Verification Checklist

- ☐ Verify DNPE Notice of Intent process and portal URL
- ☐ Verify annual testing requirement and approved test list
- ☐ Verify NC ESA eligibility and funding amount
- ☐ Verify Opportunity Scholarship income thresholds
- ☐ Verify Disabilities Grant requirements
- ☐ Check for new LGBTQ+ legislation since June 2026
- ☐ Verify all resource organization contact info
- ☐ Update "as of" date on cover page
- ☐ Replace SEAT Squad URL placeholder and generate QR code



Need Guides for Other States?

This North Carolina guide is part of a growing series of state-by-state homeschooling legal guides for diverse families.



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